

26VECV01958 26VECV01958

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 26VECV01958 Hearing Date: September 28, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ISRAEL ALCANTARA , an individual, SUSANA PAROCUA, an individual, DANNY SEBASTIAN ALCANTARA, an individual, LOPEZ EMMANUEL ALEXANDER, an individual, ROCHA DIAZ JORGE ARMANDO, an individual, ANTONIO ZOQUITECATL ORTIZ, an individual,

Plaintiff,

vs.

CNC PROPERTIES, LLC, a California limited liability company, ATLANTIC STAR, LLC, a California limited liability company, KYUNG MI CHOI, an individual, and DOES 1-10, inclusive,

Defendants.

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CASE NO.: 26VECV01958

ORDER

DENYING CROSS-DEFENDANTS' MOTIONS TO QUASH

ATLANTIC

STAR, LLC, a California limited liability company; and CNC PROPERTIES, LLC, a
California limited liability company,

Cross-Complainants,

vs.

ISRAEL

ALCANTARA, an individual; SUSANA PAROCUA, an individual; and ROES 1 through
20, inclusive,

Cross-Defendants.

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I.

BACKGROUND

Plaintiffs Israel

Alcantara (“Alcantara”), Susana Parocua (“Parocua”), Danny Sebastian Alcantara, Lopez Emmanuel Alexander, Rocha Diaz Jorge Armando, and Antonio Zoquitecatl Ortiz (collectively, “Employee Plaintiffs”) (collectively, “Plaintiffs”) allege Defendants CNC Properties, LLC (“CNC”), Atlantic Star, LLC (“Atlantic Star”), and Kyung Mi Choi (“Choi”) (collectively, “Defendants”) created and maintained a hazardous and unsafe working environment at 15826 Ventura. Bl., Suite 110, Encino, CA 91436 (the “Property”). Plaintiffs own or are employed at a restaurant that operates from a unit at the Property. As a result of these violations, Plaintiffs allege they suffered serious health problems arising from issues, including but not limited to, massive water leakage, water damage, flooding, and mold exposure.

Atlantic Star and CNC

have filed a Cross-Complaint alleging breach of contract related claims against Alcantara and Parocua.

Alcantara and Parocua

(jointly, "Cross-Defendants") move to quash service of summons of the Cross-Complaint.

II.

PROCEDURAL

HISTORY

On April 2, 2026, Plaintiff filed a Complaint alleging (1) Breach of Contract; (2) Negligence; (3) Violation of California Civil Code section 1927 (Contractual and Tortious Breach of Covenant of Quiet Enjoyment); (4) Violation of California Civil Code section 1929; (5) Violation of California Health and Safety Code section 17920.3; (6) Negligent Misrepresentation; (7) Negligence Per Se (Violation of Building Codes and Health and Safety Codes); (8) Negligent Infliction of Emotional Distress; (9) Breach of the Implied Covenant of Good Faith and Fair Dealing; (10) Violation of Business and Professions Code sections 17200, et seq. (11) Premises Liability; and (12) Injunctive Relief.

On June 17, 2026, Plaintiffs filed a First Amended Complaint ("FAC") alleging (1) Breach of Contract; (2) Negligence; (3) Violation of California Civil Code section 1927 (Contractual and Tortious Breach of Covenant of Quiet Enjoyment); (4) Intentional Misrepresentation (Fraud); (5) Negligent Misrepresentation; (6) Negligence Per Se (Violation of Building Codes and Health and Safety Codes); (7) Negligent Infliction of Emotional Distress; (8) Breach of the Implied Covenant of Good Faith and Fair Dealing; (9) Nuisance; (10) Fraudulent Concealment; (11) Violation of Business and Professions Code sections 17200, et seq.; (12) Premises Liability; and (13) Injunctive Relief.

On July 23, 2026, the Court denied Plaintiffs' Motion to Compel Atlantic Star's and Choi's responses to their Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Requests for Admissions, Set One.

On July 17, 2026, Cross-Complainants Atlantic Star and CNC filed a Cross-Complaint alleging

(1) Breach of Contract; (2) Contractual Indemnity; (3) Implied Indemnity; (4) Negligence; (5) Contribution and Apportionment; and (6) Declaratory Relief against Alcantara and Parocua.

On August 17, 2026, Cross-Defendants filed the instant Motions to Quash.

On August 19, 2026, the Court sustained in part Defendants' demurrer with and without leave to amend.

On September 9, 2026, Plaintiffs filed a Second Amended Complaint alleging (1) Breach of Contract; (2) Negligence; (3) Violation of California Civil Code section 1927 (Contractual and Tortious Breach of Covenant of Quiet Enjoyment); (4) Intentional Misrepresentation (Fraud); (5) Negligent Misrepresentation; (6) Negligence Per Se (Violation of Building Codes and Health and Safety Codes); (7) Nuisance; (8) Fraudulent Concealment; and (9) Violation of Business and Professions Code sections 17200, et seq.

On September 11, 2026, Atlantic Star and CNC filed their Oppositions.

As of September 21, 2026, no replies have been filed.

III. LEGAL STANDARD

"Code of Civil Procedure § 418.10(a)(1)[1] provides, "[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion... [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." A motion to quash must be granted if the court finds that either (1) there is no basis for exercising personal jurisdiction over the defendant or (2) service on the defendant was improper. (See *Ziller Elecs. Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1229.) When a defendant moves to quash service of the summons and complaint, the plaintiff has "the burden of proving the

facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.)

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IV.

JUDICIAL NOTICE

The Court

grants Atlantic Star and CNC's requests for judicial notice of documents in this docket. (See Evid. Code § 452(d).)

V.

ANALYSIS

The Court will

address the briefs together as they are based on substantially similar arguments and facts. Cross-Defendants move to quash service of summons on grounds that the Cross-Complaint was electronically served on their counsel but was not personally served on Cross-Defendants. (See Alcantara Mot. at 4:3-13; Parocua Mot. at 4:3-13.)

Cross-Complainants

argue service was proper as Code of Civil Procedure § 428.60(2) requires service of the Cross-Complaint on Cross-Defendants' attorney rather than personal service on the individual Cross-Defendants. (See Alcantara Opp. at 2:11-16; Parocua Opp. at 2:9-21.) Cross-Complainants argue they complied by electronically serving Plaintiffs' counsel, Katherine R. Cohan, on July 17, 2026 at kcohanesq@gmail.com, the same address she identified in Plaintiffs' FAC and which has been consistently used for electronic service in this action since May 29, 2026. (See *id.*) Cross-Complainants also contend service of this Motion was procedurally defective as they were not served with the Motions and learned of them upon review of the docket. (See e.g. Alcantara Declaration of Jieun Park filed September 11, 2026, ¶ 4.) Additionally, Cross-Complainants contend the proof of service is defective. (See Alcantara Opp., at 5:1-5; Parocua Opp. at 5:1-5.)

As an initial

matter, the Court finds the Motions were not served on Cross-Complainants. The proofs of service do not show that service was effected as they are not signed by Cross-Defendants' counsel even though they indicate they were prepared by Ms. Cohan. (See e.g. Alcantara Opp., Proof of Service.) However, because Cross-Complainants ultimately learned of the Motions and filed their Oppositions, the Court finds no basis to deny for lack of service of the Motions.

Next, the Court will deny the Motion on grounds that service was properly executed. Under Code of Civil Procedure § 428.60(2), "If a party has appeared in the action, the cross-complaint shall be served upon his attorney, or upon the party if he has appeared without an attorney, in the manner provided for service of summons or in the manner provided by Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code." Cross-Defendants have appeared in this action by commencing this action as plaintiffs under the representation of Ms. Cohan. The Cross-Complaint was served by electronic service on Ms. Cohan at the email provided for electronic service as recorded in this action's docket. (See Cross-Complaint, Proof of Service; Code Civ. Proc. § 1010.6; Rules of Court, rule 2.251.) Accordingly, the Cross-Complaint was correctly served on Cross-Defendants' counsel pursuant to § 428.60(2). Thus, the Court DENIES Cross-Defendants' Motions to Quash Service.

VI.

CONCLUSION

Based on the foregoing, the Court DENIES Cross-Defendants' Motions to Quash Service.

Cross-Defendants have until October 5, 2026, to file a responsive pleading.

IT
IS SO ORDERED.

DATED: September 28, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references are to
California codes unless stated otherwise.